

Software Implementation Services Agreement

Medium-risk service agreement with generally clear terms but some ambiguous data protection and acceptance criteria.

Party	Details
Client	Evergreen Retail Ltd.
Supplier	Ruby Systems Studio Inc.
Effective Date	2 May 2026
Term	Six months unless renewed in writing.

Agreement Terms

1. Scope of Services

Supplier will configure the client portal, migrate catalogue metadata, and provide two training sessions as described in Schedule A.

2. Fees

Client shall pay fixed fees of CAD 48,000 in three milestones: 30 percent on signing, 40 percent on staging deployment, and 30 percent on production launch.

3. Acceptance

Deliverables will be accepted when they substantially conform to the agreed requirements. Specific acceptance test cases will be mutually agreed during the project.

4. Limitation of Liability

Each party's aggregate liability is limited to the fees paid or payable in the six months before the claim. The cap does not apply to fraud, confidentiality breach, or wilful misconduct.

5. Intellectual Property

Supplier retains pre-existing tools and background IP. Client owns final client-specific configuration materials after full payment.

6. Data Protection

Supplier shall use reasonable safeguards for Client data. The parties will agree any required data processing schedule if personal information is processed.

7. Termination

Either party may terminate for material breach not cured within thirty days after written notice.

8. Governing Law and Disputes

This Agreement is governed by Ontario law. Disputes shall first be escalated to executive negotiation, then mediation.